

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Mr. Justice Shahid Waheed
Ms. Justice Musarrat Hilali
Mr. Justice Muhammad Shafi Siddiqui

Civil Petition No.3691 of 2024

*[Against judgment dated 14.05.2024 of the
Khyber Pakhtunkhwa Service Tribunal,
Peshawar passed in Service Appeal
No.12778/2020]*

Amir Waseem. ... Petitioner

Versus

*Provincial Police Officer / Inspector General of Police,
Khyber Pakhtunkhwa, Peshawar and others. ... Respondents*

For the Petitioner: Mr. Shahid Qayyum Khattak, ASC.
[through video-link from Peshawar]

For the Respondents: Mr. Muhammad Bashir Naveed,
Additional Advocate-General, KP.
a/w M. Farman, DSP (Legal).
Mr. Mukhtar Ahmed, SSP /
Dy. Commandant, FRP, KP.

Date of Hearing: 05.05.2026.

JUDGMENT

Muhammad Shafi Siddiqui, J. This petition for leave to appeal assails the judgment dated 14.05.2024 of the Khyber Pakhtunkhwa Service Tribunal, Peshawar (**'the Tribunal'**), whereby the service appeal filed by the petitioner was partially accepted/allowed and the major penalty of removal from service of the petitioner was converted into a minor penalty of stoppage of two increments for two years without cumulative effect, and the period during which he remained out of service was treated as leave without pay.

FACTS OF THE CASE

2. The petitioner was inducted in the Frontier Reserve Police, Khyber Pakhtunkhwa, as a Constable in the year 2014 and was performing his duties in the said force. On 27.02.2020, the petitioner submitted an application for transfer under the orders of SP, FRP, Kohat Range, to his home district, Karak, through the office of OHC Branch FRP, Kohat Range, which remained unresponded/unanswered. On 27.06.2020, the petitioner was informed through SMS to attend the office of SSP, FRP, Peshawar Range on 29.06.2020. He attended the said office on the prescribed date, where he was informed that his transfer order dated 11.06.2020, purportedly issued by the CPO, Peshawar, was fake and bogus. The said transfer/posting order was allegedly received in the office of the Commandant, FRP, Peshawar, but the same was neither within the knowledge of the petitioner nor was it ever acted upon.

DEPARTMENTAL PROCEEDINGS AGAINST THE PETITIONER

3. On the basis of such fake and bogus transfer/posting order, the petitioner was served a charge sheet along with statement of allegations stating therein that he had managed his transfer/posting order under the fake signature of A.I.G. Establishment, C.P.O., Peshawar. An inquiry was conducted against the petitioner and he replied to the charge sheet and appeared before the inquiry officer and refuted the allegation. However, the inquiry officer found the petitioner guilty of the charges levelled against him and recommended major punishment. Thereafter, a final show cause notice was issued to the petitioner. In response to the show cause notice, he submitted his reply and reiterated his stance and refuted the allegations and showed complete ignorance of the said transfer/posting order. Thereafter, on

24.08.2020, the Superintendent of Police, FRP, Peshawar Range, being the competent authority, imposed the major penalty of removal from service upon the petitioner. Feeling aggrieved by the said order dated 24.08.2020, the petitioner preferred a departmental appeal, which was rejected/dismissed *vide* order dated 30.09.2020. Thereafter, the petitioner approached the Tribunal by filing a service appeal, which was partially accepted/allowed (as stated above) *vide* judgment dated 14.05.2024, hence this petition for leave to appeal.

FINDINGS OF THE LEARNED TRIBUNAL

4. The learned Tribunal in the impugned judgment observed that Fawad Khan, PA/Stenographer, received the fake transfer/posting order of the petitioner through one of his friends, namely, Mr. Asadullah, without following the requisite procedure, and the inquiry officer conducted the inquiry in the wrong direction. The Tribunal further held that since the official who brought on record the said fake transfer/posting order for the first time was treated leniently and was awarded a minor penalty, the petitioner was also entitled to be treated leniently and accordingly converted the penalty of removal from service into stoppage of two increments for two years.

ARGUMENTS OF THE PARTIES

5. The learned counsel for the petitioner contended that no independent evidence has been brought on record by the respondent/department to connect the petitioner with the fake and bogus transfer/posting order; that the inquiry officer did not examine any independent witness in support of the charges against the petitioner; that the said transfer/posting order was not

in the knowledge of the petitioner and he only came to know about it from the office of SSP, FRP, Peshawar Range on 29.06.2020 and that the Tribunal misread the facts of the case and reached an erroneous conclusion. Conversely, the learned Additional Advocate-General, Khyber Pakhtunkhwa, supported the impugned judgment of the Tribunal. He further submitted that all codal formalities have been fulfilled in the case of the petitioner, and the learned Tribunal had taken a lenient view in substituting the decision of the departmental authority.

6. We have heard the learned counsel for the petitioner and the learned Additional Advocate-General, Khyber Pakhtunkhwa, and perused the material available on record.

FINDINGS AND CONCLUSIONS

7. Perusal of the inquiry report reflects that the focus of the inquiry officer was upon Fawad Khan, PA/Stenographer, and Asadullah/Constable, and there is no mention that the petitioner has any link with the charges levelled against him. The stance of the petitioner throughout the proceedings was that he was unaware of the said transfer/posting order. No evidence or material has been brought on record which could connect the petitioner with the charges levelled against him. In *Faisal Ali*¹, this Court has held that in departmental inquiries, the standard of proof is based on the balance of probabilities or preponderance of evidence and not a strict proof beyond any reasonable doubt. Even on such a standard, there must be some material connecting the delinquent with the alleged misconduct, which is conspicuously absent in the present case. Mere submission of an application for his transfer/posting to his home district cannot be treated as an element

¹ Faisal Ali v. District Police Officer, Gujrat and another (2025 SCMR 92).

of guilt against the petitioner, as the said application was a request before the competent authority and is not impermissible. The said judgment further lays down that the acid test of judging unreasonableness is that the said decision or action is so unreasonable or irrational that no reasonable person could have arrived at it and that the punishment must be proportionate to the misconduct alleged. In the present case, the learned Tribunal, despite recording that the petitioner had no direct role in the issuance of the fake transfer/posting order or the alleged bogus signatures, proceeded to maintain a reduced penalty on the basis of parity, which approach is legally untenable, as in the absence of any proved misconduct, even a minor penalty cannot be sustained. In the absence of any material establishing a nexus between the petitioner and the alleged misconduct, the inference of guilt drawn against him and the consequent penalty cannot be sustained in law.

8. The approach adopted by the learned Tribunal cannot be sustained. While observing that the petitioner had no direct role in the issuance of the fake transfer/posting order or the alleged bogus signatures, it nevertheless maintained a reduced penalty on the basis of parity. Such reasoning is legally flawed. In *Ijaz Badshah*², this Court held that the purpose of a departmental inquiry is to determine whether misconduct is made out and that a decision is irrational if no reasonable person could have arrived at it. Where no misconduct is established, the question of maintaining or reducing the penalty does not arise. In the present case, the finding of no role and the imposition of a penalty cannot stand together. The impugned judgment, therefore, fails the test of reasonableness and warrants interference.

² *Ijaz Badshah v. Secretary, Establishment Division, Government of Pakistan, Cabinet Block, Constitution Avenue, Islamabad and others* (2023 SCMR 407).

9. The impugned judgment is also unsustainable on the touchstone of proportionality. In *Sabir Iqbal*³, this Court held that proportionality is a standard that examines the relationship between the objective the executive branch wishes to achieve, which has the potential of infringing upon a human right, and the means it has chosen in order to achieve that infringing objective. The Court further held that the courts will quash exercises of discretionary powers in which there is not a reasonable relationship between the objective which is sought to be achieved and the means used to that end, or where punishments imposed by administrative bodies or inferior courts are wholly out of proportion to the relevant misconduct. It was also observed that an administrative measure must not be more drastic than necessary, and that proportionality requires a rational connection between the means and ends, along with the minimum impairment of the rights or interests in question. In the present case, no misconduct has been established against the petitioner. The very foundation required to sustain any penalty is missing. The learned Tribunal, despite recording the absence of any direct role of the petitioner, proceeded to maintain a reduced penalty, which is not only disproportionate but also legally untenable. In the absence of a proven charge, even a minor penalty cannot be justified. The impugned judgment, therefore, fails to meet the test of proportionality and cannot be sustained.

10. Keeping in view all the above-mentioned facts and circumstances of the case, we are of the considered opinion that the impugned judgment of the learned Tribunal is not sustainable in the eyes of the law and the same is set aside. Consequently, this petition is converted into an appeal, and the same is allowed in the aforesaid terms. The appellant is to be reinstated into service, (if not already reinstated into service in terms of the judgment of the

³ *Sabir Iqbal v. Cantonment Board, Peshawar through Executive Officer and others* (PLD 2019 SC 189).

Tribunal) and the period in which he remained out of service is to be treated as leave without pay.

Judge

Judge

Judge

Islamabad:
05.05.2026

Approved for Reporting
[Simra Sohail/ LC]